



MONTHLY UPDATE

Kenya: monthly update, August – September 2026

Edition of 2026-09-08 • 141 systems and instruments tracked

Developments summarised from sources published between the beginning of last month and today.

SUMMARY OF THE MONTH • GOVERNANCE • FINANCE • ICT INFRASTRUCTURE • DPI • TECHNOLOGY • CAPACITY • INCLUSION • GEOPOLITICS

Summary of the month

Election technology is where the month's arguments concentrated. Procurement of the integrated elections management system [is halted at the review board](#), the commission having rejected allegations over the results-transmission procurement in the same account; and an amendment bill [would repeal the duty to livestream polling-station results](#). Two years out from a general election, the systems that will run it are contested at both the procurement end and the transparency end.

Speech law went backwards and forwards at once. Parliament [is appealing to the Supreme Court to restore the struck-down false-information provisions of the cybercrimes Act](#); a gazette notice [requires cyber cafes to register customers and log sessions from 7 September](#); and the artificial-intelligence governance bill under debate [was criticised for omitting child-specific protection](#).

Two working systems went the other way. The health claims platform is [failing at the counter, with the President putting its KSh 104bn at a ten-year service fee rather than a payment made](#), and a court [barred discontinuation of physical vehicle logbooks](#). Against them, an advanced cargo declaration system and a port smart gate [entered service on 3 August](#), and the 47 counties [were given until 30 September to complete integration with electronic procurement](#).

The platform the state runs its services on had a bad month. eCitizen's payment layer [failed for much of 26 August](#), and the tax invoicing service reached through it [was down for three days to 31 August](#), while the Treasury [moved to take formal ownership of it by regulation](#).

Governance

Strategies, plans and policies

A revised Hustler Fund merchant tariff schedule takes effect on 7 August, delivered as voluntary alignment with central bank pricing principles rather than a gazetted rule.

Legislation and regulation

Virtual-asset regulations were [gazetted on 22 July 2026 as Legal Notice 134](#), setting paid-up capital by licence class from KES 300m for stablecoin issuance to nil for investment advisers, and a seizure and freezing framework; the draft's ownership cap did not survive into the gazetted text. Existing operators must license afresh by 4 November 2026 under the 2025 Act.

On 28 July the Court of Appeal's narrowing of the Computer Misuse and Cybercrimes Act was [reported at a coalition close-out](#): the false-publication sections and the power to shut down websites without judicial oversight were struck, and a conservatory order blocks a national internet shutdown pending full hearing.

On 31 August the National Assembly was reported to have [asked the Supreme Court to restore sections 22 and 23](#), which punished the intentional publication of false, misleading or fictitious data presented as authentic and the knowing spread of false information liable to cause panic, chaos or violence or to damage a reputation, with fines of up to KES 5m and, for some offences, up to ten years' imprisonment. The Court of Appeal had held the wording too broad, catching users who share false content without knowing it is false along with journalists and people expressing opinions; Parliament's case is that the sections reach neither opinion, satire nor good-faith error, only knowing publication presented as authentic. The narrowing is therefore contested rather than settled.

Cyber cafés acquired licence conditions and then a clarification of them. The conditions came in [Gazette Notice 12180 of 7 August 2026](#), which sets licence conditions for two categories under a revised telecommunications market structure — Public Communications Access Centre and Communications Equipment Vendor — after public consultation, effective 30 days from the notice; the same page carries a second notice covering five further categories, among them Network Facilities Provider Tier 2 and Tier 3 and International Gateway Systems and Services, so the market structure is being licensed category by category rather than in one instrument. The access-centre conditions require [customer name and identity number](#), terminal and session times to be captured and kept at least three years, taking effect on 7 September, and the regulator [clarified on 13 August](#) that operators need not [track customers' browsing history](#). An earlier account of the same rules gave the effective date as 14 August; the gazette notice the regulator cites puts it four weeks later.

A separate bill would meter what those records cover. An internet service provider [told Parliament on 14 August](#) that mandatory consumption-based internet billing under the Kenya Information and Communications (Amendment) Bill 2025 could raise costs and create data-privacy risks, metering at subscriber level implying retained usage records. No committee report or enactment date is published.

The intellectual-property bill acquired its shape in public. Parliament [invited submissions on a draft that would merge the industrial property institute, the copyright board and the anti-counterfeit authority into a single regulator](#), replace the 2001 and 2008 statutes, and set rules distinguishing AI-assisted from AI-generated inventions.

Data protection

On 4 August the data-protection regulator published [draft guidance on offshore AI processing](#) requiring a lawful transfer basis, a documented adequacy assessment and a written processing agreement before personal data leaves Kenya; the note itself is not held after two retrievals returned HTTP 404.

The gambling regulator [confirmed on 3 August](#) that it is investigating three licensed operators on a complaint dated 19 May 2026, with police requesting its entire record on the licensees back to 2018.

The regulator also pressed an older instrument into the campaign. The data commissioner [said guidance now binds every organisation touching voter data](#), from the electoral commission down to civil-society registration groups, with the commission's own processing anchored in statutory mandate rather than consent and parties' obligations turning on how they obtained the data, as unsolicited political messaging spreads ahead of the 2027 election. The guidance itself is not new: the Office [issued its Guidance Notes for Electoral Purposes on 29 February 2024](#), covering the voter register, political parties' member registers and campaign use of personal data under the Data Protection Act 2019. What changed in August is the statement of it, not the rule. No enforcement action under the guidance is on record.

A gap the regulator does not cover was named at the internet governance forum, where a United Nations agency said an Agency Coordination Mechanism is being fast-tracked against AI-manipulated images and the doxing of female candidates ahead of the 2027 elections; no terms of reference or date is published.

Regional collaboration

The continental data convention still has no Kenyan signature behind it, but the base can now say why. A policy brief prepared for the accession process records that Kenya has neither signed nor ratified the Malabo Convention, that the Cabinet approved a process step towards accession in September 2025, that the data protection commissioner then led national consultations closing 6 October 2025, and that the Attorney-General had cleared the Convention before the process stalled twice on cabinet reshuffles; twenty African Union member states had ratified as at March 2026. A high-level parliamentary dialogue on accession was called for 7 September 2026. What has moved is the process, not the treaty position, and no instrument of accession is on the record. A peer-reviewed review of health-data governance in four countries records only Rwanda as a signatory and finds all four frameworks fragmented, with weak harmonisation of cross-border transfers and capacity gaps.

Standards

Two days after introducing the equipment distributor licence, the Communications Authority introduced vendor class-licence rules requiring a twelve-month warranty and three years of retained sales records. The data-protection regulator launched a quality management system on 14 July, phased toward external certification.

Two sets of standards arrived, one binding and one draft. The revenue allocation commission gazetted binding standards for county own-source revenue automation, covering the system lifecycle from procurement to audit and requiring data ownership and portability safeguards to cut vendor lock-in; no compliance date, county baseline or enforcement mechanism accompanies them. The pharmacy regulator published draft guidelines for digital pharmacy services covering telepharmacy, electronic prescribing and digital health records, with no consultation close or adoption date stated. The text is a second revision that widens the scope of regulation from internet pharmacy services to digital pharmacy services generally, reaching digital health platforms, pharmacy chains and third-party technology, hosting, payment and logistics providers, and carrying a 2026 effective date against a 2029 review; its approval blocks are unsigned.

Public debate and participation in policymaking

One item moved in this window and it is a contested procurement rather than a policy debate: a former deputy president told reporters on 24 August 2026 that the electoral commission's results-transmission contract specifications were tailor-made for a single South Korean bidder, that every other competitor has gone to the procurement appeals board, and that the firm has failed at every election it has taken part in. He says he is still documenting the claim; the report names neither the company nor the contract, and no commission or appeals-board response is on file.

The commission answered on 27 August. It said no company has been awarded the 2027 election-technology tender, that tenders for the management system's hardware and for ballot papers are frozen at the Public Procurement Administrative Review Board on a request for review, and that the documents were published on 11 August with generic performance-based specifications. The forum that would normally host this argument met the same week: KICTANet published the report of the nineteenth Kenya Internet Governance Forum, held with more than 300 participants and confirming Kenya as host of the global forum, in Nairobi for the first time since 2011.

The Digital Superhighway's procurement went to court and lost. On 4 September the High Court [quashed the 2024 advisory opinion of the Attorney-General that had cleared payments connected to the Sh15bn Nightigale tender, and referred the conflict-of-interest question to the anti-corruption commission](#). The challenge came from a consumer federation, which had contested [the award of two 2022-23 tenders and the payment made to the communications regulator's former chairperson on the strength of that opinion](#). The judgment itself is not held, and no response from the agencies or the Attorney-General is on file – but the opinion that stood behind the payments no longer does.

Finance

MoUs and other agreements

The judiciary took on a foreign partner for its access-to-justice work. A memorandum [was signed at the Supreme Court on 10 August with a Netherlands justice-innovation institute, with an intergovernmental development-law organisation and the Netherlands embassy participating](#), building on the country's own access-to-justice blueprint. No value, term or deliverable is stated. In the same week the chamber of commerce and the council of governors [signed a five-year agreement to harmonise county business licensing and digitise small-enterprise data across all 47 counties](#), with no budget, milestone or data-governance arrangement for the pooled data stated.

New investments

Two financings were signed. A [EUR270m facility across 21 obligors in eight jurisdictions was signed on 9 July, its committed portion of up to EUR170m including a local-currency tranche of up to EUR20m equivalent in shillings for fibre modernisation in Kenya](#), with a further uncommitted EUR100m for future acquisitions and capital expenditure across the lender's sub-Saharan operations. Domestically the digital economy acceleration project [took KSh 4.3bn for the year, half the entire digital thematic, to equip more than 10,000 junior secondary schools](#).

On 4 August the development lender committed [US\\$24.2m across three Kenyan lenders under the first catalytic first-loss guarantee transactions anywhere in Africa](#), backed by US\$11m of concessional private-sector-window money and expected to catalyse about US\$144.4m of local-currency lending to micro-enterprises. Only one of the three counterparties is a digital lender; the individual allocations are not disclosed, so what the structure buys in fintech terms cannot be read off the announcement.

On the lending side, a guarantee structure was announced on 5 August: [a catalytic first-loss guarantee of US\\$24.2m across three Kenyan transactions, backed by US\\$11m of concessional financing, expected to catalyse about US\\$144.4m of local-currency lending to small and medium enterprises](#). The catalysed figure is an expectation rather than a disbursement. One of the three counterparties [reports having disbursed more than US\\$1bn cumulatively over thirteen years to micro and small businesses without collateral or financial records, underwriting on its own model rather than credit files](#) – a lifetime total given in a profile, with no outstanding book, default rate or borrower count beside it.

ICT Infrastructure

Connectivity

The Communications Authority introduced a [Communications Equipment Distributor licence](#) by public notice on 21 July 2026, mandatory before equipment type approval and customs clearance, with penalties of KSh 1m or three years.

Satellite capacity ran out in the country's densest markets. The operator [suspended new sign-ups across seven counties](#) in early July, diverting orders to a deposit-backed waitlist. On 4 August the second mobile operator said its direct-to-cell pilot had completed and it awaits regulatory approval; the interference audit opened in March has produced no published finding.

The government fibre programme was measured against its own deadline for the first time. The ICT Cabinet Secretary put [37,000km installed against the 100,000km target serving 53,000 government facilities, leaving 63,000km outstanding months before the 2027 deadline](#); the programme was announced in November 2022 and split in 2023 into 52,000km for government and 48,000km for private companies, with Sh940.6m paid to the power utility by June 2025. The same account puts [broadband subscriptions at 52.85 million by March 2026 against 22.08 million in June 2020, fixed internet at 2.66 million, 4G population coverage at 73.4% and 5G at 3.04%](#). The 37,000km is the minister's own figure and no route or county breakdown stands behind it.

Kenya and Tanzania [launched a cross-border terrestrial fibre link](#) on 29 July 2026, integrating the Tanzanian backbone with the Mombasa submarine landings. The London Internet Exchange [added a regional cloud provider to its Nairobi hub](#) in July, reaching 55 or more connected networks on combined traffic of 330 Gbps.

The largest procurement in the window is a surveillance build sold as traffic management. The roads authority is out to tender on [Nairobi's Intelligent Transport System Phase II at Ksh10bn, about US\\$83.8m, covering CCTV, e-police monitoring and vehicle-detection systems at 60 junctions on a 30-month design-build contract financed by a South Korean development loan](#), with the bid deadline pushed back two weeks to 19 August. No data-protection authorisation, retention rule or oversight arrangement for the cameras and detection systems is reported, and no award has been made.

An industry survey filled a gap in the record on 5G: commercial networks opened between October 2022 and July 2023, the largest operator [doubled its 5G sites to about 1,700 in 2025](#), and coverage is projected to reach 94 per cent by 2030, helped by rules that let operators refarm existing spectrum. The service is used mainly as an alternative to fibre for connecting homes and businesses.

On the delivery side of the same programme, coordination was stepped up rather than the schedule revised: two principal secretaries began [co-chairing a standing review of the implementing agencies on 4 September, the coordination framed against a target of taking the technology industry from US\\$7bn to US\\$100bn](#). No revised delivery date came with it, and 63,000km of the 100,000km fibre target remains outstanding before the 2027 deadline.

Data Storage

On 4 August the operator building the 44MW Tatu City data centre [moved completion to July 2027](#) from a first-quarter 2027 date.

Two prospective builds at the technopolis went from talk to signature inside five days. On 13 August the authority and a hyperscaler were [exploring a local cloud outpost and a startup and technical centre of excellence](#) and the ICT principal secretary [received a Chinese network communications group on broadband, smart cities and digital infrastructure investment](#); by 18 August the authority had [signed a collaboration agreement putting the hyperscaler's technical leadership behind an Outpost for hybrid cloud and a startup and innovation centre of excellence](#), with certification courses for its staff and for young Kenyans and credits for startups, and [a memorandum with the Chinese group covering the planning, investment, financing, design, development and maintenance of cloud](#),

[artificial intelligence, high-performance computing and smart-city infrastructure on the site](#). Neither instrument carries a capacity, a site, an investment figure or a date, and the second states its financing models as still to be explored.

A proposal arrived that would sit outside the grid entirely. A foreign firm [has proposed a US\\$1.5bn offshore data centre at Mombasa, powered by liquefied natural gas and designed to bypass the national grid, and is reported in talks with the government](#). No capacity, timeline or site is disclosed, and the value and the design intent are the proposing company's own.

One build opened rather than slipping. The operator of the largest colocation campus [added 6.4MW at a second Nairobi facility on 7 September, and retired the iColo brand in Kenya and Mozambique in favour of its parent's](#). The figure is critical IT load rather than delivered live load, and no occupancy, customer count or campus total is published.

Energy

The distributor put a limit on the energy transition in public. On 11 August KPLC [urged that the quantum of variable renewable generation coming onto the system be moderated to protect grid stability](#). It is a statement of position rather than a curtailment rule, a connection standard or a published limit, and nothing in the base says what quantum the utility considers safe. A week earlier the Senate energy committee [received a status report on the off-grid solar access project and asked for assurances that it is delivering](#). The data-centre load the grid is being built to carry remains unmeasured in this ledger.

Technical Capacity

Two capacity items advanced without a figure attached to either. Nationwide broadcast-logger deployment is complete with a monitoring room at the regulator's centre, [joint regulator training concluding on 27 July](#), with no cost, coverage or channel-count disclosed. The advanced science and technology institute has its charter issued and its [operationalisation under review with the Korean export credit agency](#), with no allocation for the year disclosed and no commitment amount stated.

Cybersecurity

The presidency's website was [defaced on 18 July with a 5 BTC ransom demand and restored on 20 July](#) — the second compromise of that portal in eight months. State House says no evidence of data access was found; cause and attribution are undisclosed.

The regulator's own quarterly report reached the base, the primary behind a figure the record had held at second hand. The national response centre [detected 2,355,938,192 threat events in April-June 2026, down 30.03% on the previous quarter, while web application attacks rose 43.68% to 17,406,495 and 20,748,489 advisories were issued](#); government systems and internet service providers were named the primary targets, with attackers seeking authentication credentials, vulnerable browsers and database servers. Events detected are not incidents suffered, and no national incident series is published.

A vendor threat report published on 13 August put the exposure at the ordinary end rather than the novel one: [malicious email attachments dominated, 46.2% of them scripts, quick-response-code phishing rose 145% between the second half of 2025 and the first of 2026, exploitation of a 2017 Office vulnerability more than doubled, and one loader became the country's fourth most-detected malware family](#). The figures are the vendor's own detections, not a national incident series.

The instrument establishing the new agency also reached the base this month, three months after it took effect. The [State Corporations \(National Cybersecurity Agency\) Order, 2026 – Legal Notice 89 of 2026](#), gazetted and commenced on 15 May 2026 – makes it an autonomous body corporate headquartered in Nairobi City County under the direction of the Cabinet Secretary for internal security, charged with formulating national cybersecurity strategy, auditing and certifying the resilience of designated critical information infrastructure, running the National Cybersecurity Operations Centre and maintaining a Cybersecurity Centre of Excellence, with a board seating the internal-security, Treasury and ICT principal secretaries alongside one academic and one private-sector appointee. Nothing in the record shows it exercising any of those powers yet. Leadership was named in the same month: an inaugural non-executive chair was announced and the President [appointed a director to lead it](#). No budget line, staff complement or first published function is on file, and the National Cybersecurity Policy beside it is still only planned.

The standards the new agency will enforce were put to the people who would have to work them. The technology authority [tested the National Information Security Framework's audit, risk-management and certification mechanisms at a Nairobi workshop](#), to establish whether they are practical for national implementation ahead of certifying critical information infrastructure. Neither the framework text nor the certification criteria nor the list of infrastructure to be certified is published.

DPI

Data Exchange

The health ministry issued tender addenda on 27 July 2026 that [make financial, tax, insurance, pension, payroll, laboratory and identity interfaces day-one mandatory](#) for a national public-health enterprise system, and require primary hosting inside an approved Kenyan government or health-sector environment.

The Treasury is building the other kind of exchange — one that looks at the money coming in. It is [rolling out a Development Partners Management Information System, expected to launch before the end of 2026](#), to consolidate data on development-partner commitments, disbursements and funded programmes for planning and oversight. No supplier, cost, or statement of whether the consolidated data will be published is reported.

The regional payments interlink took another participant: a commercial bank group [went live on the pan-African system on 11 August, adding its branch network to instant cross-border transfers in local currencies](#).

Digital Identity and CRVS

Government is [procuring a system to cut identity-card issuance to ten days and passports to a week](#). The source is a headline account; no contract, vendor or value is held.

Two identity systems met the courts instead. The High Court [barred the transport authority from discontinuing physical vehicle logbooks](#) on 11 August, pending a petition arguing the electronic logbook was introduced without public participation and without adequate data-protection and cybersecurity impact assessments. Separately, the Attorney-General's six-month window to legislate on phone-number recycling, opened by the March judgment recognising a registered number as a protected digital identifier, [was still open in August with nothing tabled](#), while banks, savings societies and platforms continue to rely on numbers after reassignment.

The transport and safety authority's own disclosure notice under the PPP Act settles the smart driving licence partnership the base had held only in summary: a twenty-one-year Strategic Partnership with [a KCB Bank Limited and Pesa Print consortium, estimated at KSh 42bn over its first two to three years and funded entirely from private debt and equity, approved by Cabinet on 15 December 2025 after the Attorney-General cleared the draft agreement in January](#). It is to issue 5 million polycarbonate cards every three years, stand up 102 enrolment centres,

install 700 fixed and 300 mobile speed cameras behind a national command centre, and carry a licence wallet taking deposits and payments. The project began in 2017 with the National Bank of Kenya and passed to KCB by novation after Access Bank bought NBK. No financial close or first issuance date is named.

Digital Payments and Fintech

Borrowers can [repay Hustler Fund loans in loyalty points from 23 July](#), five points settling one shilling, recovering KSh 3m in the first week. A second operator launched a merchant wallet on 3 August.

Registries

The registry movement in the window is a proposal rather than a build. The National Qualifications Framework (Amendment) Bill, 2026 [proposes a national database of qualifications established, maintained and published by the qualifications authority, extending to foreign qualifications recognised in Kenya, with awarding institutions required to notify the authority within 90 days of issuing a qualification](#). What it would add to the register estate is a verification route for a credential, which the base currently has no instrument for. The Bill itself is now on file, [gazetted on 24 July 2026 as National Assembly Bills No. 53](#). Nothing is settled beyond that: it is a bill, with no enactment date, hosting arrangement or access rule on record.

A second register was announced rather than built. The agriculture cabinet secretary is championing a nationwide rollout of an [animal identification and traceability system giving every head of livestock a unique identity and a lifetime record of origin, ownership, health, vaccination and movement, tagged physically and linked to a central platform readable by veterinarians, abattoirs and traders](#). No operator, legal basis, budget or start date accompanies it.

Sectoral management information systems

Health claims authorisation failed at the counter through the month. A teachers' union raised on 30 July that members were [turned away and billed in cash](#) when the platform failed, one charged Ksh8,500 on 19 July; the Authority answered that the Digital Health Agency runs the system on its behalf. The platform's cost re-entered the record in August: the President denied on 18 August that the state entered a KSh 104bn technology contract, and was reported on 21 August putting [the KSh 104 billion at the total project service fee over ten years rather than a lump-sum government payment](#). The Auditor-General's finding of a KSh 104.9bn procurement, unbudgeted and non-competitive, is not answered by that; no contract text is held.

An academic review published on 5 August put the child-protection case system on the other side of that ledger, [crediting it with cutting duplication and improving real-time coordination between agencies, with recorded cases rising from 20,235 in 2016/17 to 54,583 in 2021/22](#). The most recent of those figures is four years old, and the system is American-funded — which places it in the same account as the withdrawal recorded under inclusion below.

The claims platform was quantified from the settlement end for the first time. The health ministry and the counties jointly put [settlement at 78% across all 47 counties with KSh 159.3bn paid, and reconciliation and sign-off completed for legacy insurance-fund claims](#), at an intergovernmental budget council session on 31 August. It is their own joint figure, published without a denominator, an ageing profile or a rejection breakdown — and it is not on the same basis as the authorisation failures still being reported at facility counters, which nothing in the session retracts.

Other GovTech and e-Gov

The Controller of Budget's report entered July's reading: [1,695 of a target 11,000 services](#) were migrated onto eCitizen in the year to 31 March 2026, against 3,458 the year before, described as a dismal performance.

The platform sells better abroad than it migrates at home. Its operator [pitched the Democratic Republic of the Congo's digital economy ministry on 12 August on digital company registries, beneficial-ownership traceability and real-time state-revenue tracking](#), citing eCitizen's forty-plus digitised services and existing registry deployments in Malawi and South Sudan; the Congolese minister asked officials to continue talks toward a partnership. The claims are the vendor's own, made in a sales meeting, and the same operating consortium's domestic position remains under challenge.

The procurement platform got a hard date for the tier that has resisted it. On 25 August the Treasury [gave all 47 county governments until 30 September 2026 to finish integrating the electronic procurement platform with the Integrated Financial Management Information System, so that tendering, award and contract monitoring connect to budget planning, spending and payment](#). The deadline lands on a rollout that has already slipped: a first phase launched in April 2025 for extension to all national and local administrations from 1 July 2025, against resistance from the Council of Governors over pace and service disruption, with more than 900 public entities migrated by February 2026. Public procurement is [put at close to 30% of Kenyan GDP](#), which is the size of what the deadline is meant to bring onto one record.

The election system's own procurement was sent back. The electoral commission had [said the tenders were temporarily halted after a request for review, with the Register of Voters to undergo a 30-day biometric verification and an independent audit before certification](#); on 4 September the review board [ordered it to correct and re-publish the tender, finding it disclosed neither the methodology and objective benchmarks for the 100-point technical evaluation nor the evidence establishing compliance with mandatory requirements, ownership or manufacturer authorisation, and directing it to take advice from the procurement regulator and allow bidders not less than seven days](#). The board rejected a claim that the specifications were tailored to one supplier.

The platform also failed twice. On 26 August the payment layer [went down for much of the day, leaving transport authority services unusable, transactions abandoned or paid for twice and invoices missing](#); the authority confirmed the fault and said a platform team had been dispatched. Five days later the electronic tax invoicing service reached through eCitizen [was down for three days to 31 August, taxpayers able to generate invoices but not download them](#) — and because revenue rules make payment conditional on that invoice, rent, school fees and a semester start were delayed. No uptime figure is published for the platform, so its reliability is measured only by the outages that get reported.

Its legal footing moved the other way. On 27 August the Treasury [presented draft regulations to the National Assembly's delegated legislation committee that would replace eCitizen's convenience fee with a statutory access fee and vest ownership, hosting, administration, maintenance and security of the platform in the Treasury, and members of parliament demanded clarity on who owns the platform as they did so](#).

Technology

AI

The draft AI policy was published for comment on 21 July and comment closed on 4 August. It runs to 226 pages, asserts [effects-based jurisdiction over entities outside Kenya](#) whose outputs have direct and foreseeable effects in the country, leaves "high risk" undefined and states no penalties. Its labour chapter [sets minimum standards for content moderators, data annotators and evaluators](#), binding on international firms operating through outsourcing partners.

An analysis published on 23 July recorded that the National AI Strategy, costed at KSh 152bn over five years, [carries no dedicated allocation in the 2026/27 budget](#). On 28 July the government and the UN development programme agreed progress on a national AI computing platform; no GPU count, cost or commissioning date was published. Kenya was named on 31 July as one of five governments launching a pooled African-language AI initiative.

The draft then drew its first substantive submission, and a headline figure. A civil-society organisation [urged institutional independence for the proposed AI council and mandatory human-rights impact assessments](#) on 14 August, with the draft reported as nearing Cabinet consideration. Alongside it, a commercial data compiler's mid-year update [put 97.5% of Kenya's online adults using an artificial-intelligence tool monthly, first globally, ahead of the United Arab Emirates at 94.2% and Indonesia at 93.6%](#). It is a self-reported survey of online adults rather than a population measure.

The ministry meanwhile put up an assistant of its own. The ICT cabinet secretary [put up a platform, hosted on his own official website, intended as a single entry point routing citizens to the agency or service responsible for a given digital programme](#); its developers say it will launch once the underlying information, routing and review safeguards are in place, so it is not yet answering questions. A public-information service sited on a minister's website rather than a government domain carries no stated operator or accountability route.

Innovation ecosystem

Venture funding data published on 27 July put Kenyan startups at [US\\$126m in the first half of 2026](#), third in Africa and the weakest half since early 2021, against US\$1.04bn across 2025.

Capacity

Literacy

The regulator [donated computers to a school in Turkana on 30 July, one of 23 institutions recently supported](#), with no quantity or value disclosed. Private money reached further into the same gap: three laboratories [opened at Kholera Primary, Moody Awori Primary and Ralak Girls High in the weekend to 25 August under a Rotary Foundation Global Grant, taking that programme to at least 13 schools on a stated USD 91,650](#), against a state literacy programme running since 2016 that has not reached every school equally.

Training and skills

The 117th digital hub was [commissioned in Baringo on 20 July](#) on the ceremony series, against a separate installed-base series of about 350 that the programme's own officials also use.

Certification reached the platform economy from the other direction, in one county and at small scale. A ride-hailing operator and the Mombasa county government [launched a programme to license 400 delivery riders through the national Recognition of Prior Learning framework, the operator committing KES 1.5 million: riders complete 21 days of accredited training at a certified driving school before the transport and safety authority licenses them on demonstrated competency, under a January 2026 memorandum covering compliance, safety, youth employment and platform adoption, and the operator will share trip and demand data with the county for infrastructure planning including the siting of electric-vehicle charging points](#). Four hundred riders is set against a sector a 2025 parliamentary report puts at more than two million, and no data-sharing agreement, retention rule or privacy basis for the trip and demand data accompanies it.

Teaching practice moved before any curriculum did. A mathematics and science teacher-training centre [ran an international workshop for 100 teachers on 3 and 4 September on digital literacy for competency-based science teaching, its acting chief executive warning against dependence on artificial intelligence in classrooms](#). No guidance document, cascade plan or teacher-reach target is published behind it.

Research institutions

The base gained its first account of a named Kenyan data-science career, a [data-for-social-impact leader profiled](#) in a series of conversations with practitioners. It is an interview rather than an institutional record, and carries no programme, funding or output figure.

Inclusion

Access to services

The Auditor-General's findings on the Hustler Fund entered the record on 23 July: [104,631 loans worth KSh 116.5m](#) were issued to borrowers whose national identity details were missing from the customer database, against a 15% default rate and state funding down to KSh 300m in the year to June 2026.

Digital divides

The KenSafeSpace digital-rights coalition [closed on 28 July](#) after 30 months on a EUR 1.3m grant, reporting 18,000 people reached directly and 133 defenders trained, with its 49 members continuing unfunded; a successor programme opened the same day training 150 justice-sector officials on digital evidence.

The larger withdrawal is American. An implementing partner's account published on 12 August reports that [work bringing connectivity and digital inclusion to remote Kenyan counties slowed or stopped after the 2025 wind-down, in which 83% of the agency's programmes were cut, and that the multi-funder Women in the Digital Economy Fund lost its American component while the parts other funders backed continued](#). What is described as lost is not the money alone but the convening: the party that got competitors, ministries and communities into the same project. No replacement funder is named, and no figure for the Kenyan share is stated.

Domestic provision was restated in the same fortnight. The regulator's Universal Service Fund [put a target of 120,000 people across 19 counties over three years on its Digital Skilling Project](#), aimed at unserved and underserved areas and framed as the skills half of a connectivity programme. It is a target stated at a stakeholders' workshop: no budget line, delivery partner, county list or start date accompanies it, and the fund's own FY2025/26 account is still unpublished.

Geopolitics

US / hyperscaler activities

A delegation from a Korean university and development institute [came to Nairobi to evaluate the outcomes](#) of South Korea's development assistance to the digital economy. No findings, envelope or successor programme has been published, and the row sits under this heading because the base holds no separate slug for Korea.

China activities

The e-commerce cooperation memorandum with China was [cited as the basis for dispatching eighteen ICT officers to Shandong](#), framed inside the digital master plan. The memorandum's signature date, terms and text are not held.

EU activities

A European data-adequacy decision was described as being in prospect, in [a development agency interview that mentions it in passing alongside cross-border identity work](#). No application, assessment stage or timetable is stated, and neither the European Commission nor the government has said anything on the record here.

Gulf/UAE activities

Kenya and Qatar [agreed on 12 August to institutionalise annual bilateral political consultations](#), the inaugural round led on the Kenyan side at principal secretary level. The account names no digital instrument, no committed amount and no project. That is the shape of the Gulf record here generally: seven memoranda signed with the United Arab Emirates in May 2025 and diaspora consultations in Riyadh in July 2026, none of them describing what was agreed in terms this base can put on a system or an instrument.

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